

LEGISLATURE OF NEBRASKA  
ONE HUNDRED NINTH LEGISLATURE  
SECOND SESSION

**LEGISLATIVE BILL 737**

Introduced by Rountree, 3.

Read first time January 07, 2026

Committee:

- 1 A BILL FOR AN ACT relating to persons with developmental disabilities; to
- 2 amend section 81-6,122, Reissue Revised Statutes of Nebraska; to
- 3 require a joint public hearing and report for evaluation of the
- 4 progress of the Olmstead plan as prescribed; and to repeal the
- 5 original section.
- 6 Be it enacted by the people of the State of Nebraska,

1       **Section 1.** Section 81-6,122, Reissue Revised Statutes of Nebraska,  
2 is amended to read:

3       81-6,122 (1) The Department of Health and Human Services shall, in  
4 collaboration with the Department of Correctional Services, the  
5 Department of Economic Development, the Department of Labor, the  
6 Department of Transportation, the Department of Veterans' Affairs, the  
7 State Department of Education, the University of Nebraska, and the Equal  
8 Opportunity Commission, develop a comprehensive strategic plan for  
9 providing services to qualified persons with disabilities in the most  
10 integrated community-based settings pursuant to the Olmstead decision.

11       (2) The chief executive officer of the Department of Health and  
12 Human Services shall convene a team to:

13       (a) Develop the strategic plan described in subsection (1) of this  
14 section;

15       (b) Appoint and convene a stakeholder advisory committee to assist  
16 in the review and development of the strategic plan, such committee  
17 members to include a representative from the State Advisory Committee on  
18 Mental Health Services, the Advisory Committee on Developmental  
19 Disabilities, the Nebraska Statewide Independent Living Council, the  
20 Nebraska Planning Council on Developmental Disabilities, the Division of  
21 Rehabilitation Services in the State Department of Education, the Public  
22 Service Commission, the Commission for the Deaf and Hard of Hearing, the  
23 Commission for the Blind and Visually Impaired, a housing authority in a  
24 city of the first or second class and a housing authority in a city of  
25 the primary or metropolitan class, the Assistive Technology Partnership,  
26 the protection and advocacy system for Nebraska, an assisted-living  
27 organization, the behavioral health regions, mental health practitioners,  
28 developmental disability service providers, an organization that  
29 advocates for persons with developmental disabilities, an organization  
30 that advocates for persons with mental illness, an organization that  
31 advocates for persons with brain injuries, and an area agency on aging,

1 and including two persons with disabilities representing self-advocacy  
2 organizations, and, at the department's discretion, other persons with  
3 expertise in programs serving persons with disabilities;

4 (c) Arrange for consultation with an independent consultant to  
5 assist with the continued analysis and revision of the strategic plan and  
6 determine whether the benchmarks, deadlines, and timeframes are in  
7 substantial compliance with the strategic plan;

8 (d) Provide continuing analysis of the strategic plan and a report  
9 on the progress of the strategic plan and changes or revisions to the  
10 Legislature by December 15, 2021, and every three years thereafter; and

11 (e) Provide the completed strategic plan to the Legislature and the  
12 Governor by December 15, 2019.

13 (3) The reports and completed plan shall be submitted electronically  
14 to the Legislature.

15 (4) On or before October 1 of each year, the Health and Human  
16 Services Committee of the Legislature and the Urban Affairs Committee of  
17 the Legislature shall:

18 (a) Hold a joint public hearing to assess (i) the progress of the  
19 Olmstead plan during the previous calendar year in the areas of housing,  
20 employment, education, community supports, and transportation, and (ii)  
21 potential legislative solutions; and

22 (b) Electronically submit a report of its findings to the Clerk of  
23 the Legislature no later than December 31 of each year.

24 **Sec. 2.** Original section 81-6,122, Reissue Revised Statutes of  
25 Nebraska, is repealed.